

		<i>Changsha Metro Group</i> court conclude, in incorporating the standards of section 128.5, section 425.16 did not incorporate the requirements set forth in 128.5, subdivision (f), because they were impracticable given the strict and short deadlines section 425.16 otherwise imposes: "Due to the lack of practical insight into how one could make section 128.5, subdivision (f) function in an anti-SLAPP context and due to a lack of meaningful analysis of legislative history, we find defendants' criticism to be unpersuasive. Accordingly, as set forth ante, the proper procedure for a trial court to follow in regard to a request for attorney's fees related to a frivolous anti-SLAPP motion is the procedure set forth in subdivisions (a) and (c)." (<i>Changsha Metro Group, supra</i>, 57 Cal.App.5th at p. 23.) Accordingly, <i>Changsha Metro Group's</i> holding is limited to the anti-SLAPP context and Mansour has not shown any reasons why the requirement of section 128.5, subdivision (f) should not apply in the context of this case. The denial of the sanctions and fees request is without prejudice to any future motion or other request, and this ruling does not foreclosure any claim for damages that may arise out of the improper filing and recording of the abstract of judgment. To be clear, the court also expresses no opinion on the propriety or merits of Santos's renewed motion to amend or his pending petition before the Workers' Compensation Appeals Board. This ruling vacating and quashing the abstract of judgment is based on Santos's improper filing and recording of the abstract before Mansour is added as a judgment debtor; it does not express any opinion as to whether Mansour can or should be added as an additional judgment debtor in the future. This ruling also is without prejudice to Santos submitting a new abstract of judgment consistent with the current judgment in this action. Mansour is ordered to give notice of this ruling and to submit a proposed order, suitable for recordation, releasing any lien created by the abstract of judgment and vacating the entry of the abstract by the court.
10.	<i>Hoang vs. South Longspur Trust, Dated 6/6/2018</i> 2018-01021633	Before the court is the motion of defendant South Longspur Trust Dated 6/6/2018 (Longspur) for monetary sanctions pursuant to Code of Civil Procedure section 128.7. The motion seeks sanctions against plaintiff Nam Neil Hoang (Plaintiff) based on a motion to vacate and a motion for

		reconsideration he filed in January 2026. As more fully set forth below, the motion is GRANTED. ““Trial courts, of course, are empowered to inquire into the bona fides of private lawsuits, . . . Code of Civil Procedure section 128.7 provides that the filing of a pleading certifies that, to the attorney or unrepresented party's 'knowledge, information, and belief, formed after an inquiry reasonable under the circumstances,' the pleading is not being presented 'primarily for an improper purpose,' the claims, defenses and other legal contentions therein are 'warranted,' and the allegations and other factual contentions 'have evidentiary support.' (<i>Id.</i>, subd. (b).) If these standards are violated, the court can impose an appropriate sanction sufficient to deter future misconduct, including a monetary sanction.” [Citations.] “The purpose of section 128.7 is to deter frivolous filings.”” (<i>Kojababian v. Genuine Home Loans, Inc.</i> (2009) 174 Cal.App.4th 408, 421.) Whether the certificate of section 128.7 is violated is tested objectively—i.e., whether the paper filed is frivolous, legally unreasonable or without factual foundation. “The actual belief standard . . . requires a well-founded belief. We measure the truth-finding inquiry’s reasonableness under an objective standard, and apply this standard both to attorneys and to their clients.” (<i>Bockrath v. Aldrich Chemical Co., Inc.</i> (1999) 21 Cal.4th 71, 82; <i>Marriage of Sahafzadeh-Taeb & Taeb</i> (2019) 39 Cal.App.5th 124, 135, fn. 6; <i>Peake v. Underwood</i> (2014) 227 Cal.App.4th 428, 440 [“A claim is objectively unreasonable if any reasonable attorney would agree that [it] is totally and completely without merit”].) “A claim is factually frivolous if it is not well grounded in fact and it is legally frivolous if it is not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.” (<i>McCluskey v. Henry</i> (2020) 56 Cal.App.5th 1197, 1205 [internal quotes omitted].) “A ‘nonfrivolous’ argument presupposes reasonable research and investigation. Again, this is an objective standard and bars any excuse for patently frivolous arguments. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2026) at ¶9:1177, citing Committee Notes on 1993 Amendments to Federal Rules of Civil Procedure (1993) 146 FRD 401, 587 [interpreting FRCP 11].) Under section 128.7, “it is not necessary to show the party acted with an improper motive or subjective bad faith. But the fact that a party does not actually believe in the merits of the claim is relevant to the
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	issue whether sanctions are warranted in the particular case.” (<i>Peake v. Underwood, supra</i>, 227 Cal.App.4th at p. 449.) Here, on October 30, 2022, the Court of Appeal issued its opinion affirming the judgments on both the third amend complaint and the cross-complaint in this action, finding Plaintiff failed to state any valid challenge to the judgments. The Court of Appeal issued its remittitur on January 15, 2026. On January 23, 2026, Plaintiff filed his motions to vacate the judgments the Court of Appeal had just affirmed and to reconsider various rulings that lead to the judgments. On April 9, 2026, the court denied both motions, rejecting Plaintiff’s challenges, explaining this court lacked authority to vacate a judgment the Court of Appeal affirmed, and stating Plaintiff failed to comply with any of the requirements for or stated any basis for reconsideration. (See April 9, 2026 Minute Order, which is incorporated herein by reference.) The court finds Plaintiff has failed to establish any nonfrivolous argument to justify his motion to vacate and motion for reconsideration. As explained in the ruling denying those motions, the judgments are final following the Court of Appeal opinion and remittitur and Plaintiff has not even attempted to make nonfrivolous argument that would allow this court to vacate the judgment or any prior ruling. Plaintiff’s disagreement with the judgments and prior rulings is not a basis for setting them aside, and Plaintiff may not continue to relitigate the issues. It was Plaintiff’s obligation to assert all arguments he had in the Court of Appeal. The court further finds Longspur complied with the requirements of section 128.7, including the 21-day safe harbor provision, and Plaintiff’s motions were unwarranted, brought for improper purpose, and lacked legal and evidentiary support. Sanctions under the code are warranted. The court finds both the hourly rates and the number of hours requested for opposing Plaintiff’s two motions and bringing this motion to be reasonable and appropriate. Based on the foregoing, the motion is GRANTED and Longspur is awarded the requested amount of \$2,666.07 in attorney fees and costs against Plaintiff. Longspur’s counsel is ordered to give notice of this ruling.
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